

23CHCV02725 23CHCV02725

County: los-angeles

Division: Civil Law and Motion

Department: F43

Hearing date: 2026-08-20

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Case Number: 23CHCV02725 Hearing Date: August 20, 2026 Dept: F43

Dept. F43

Hearing Date: 08-20-26

Case # 23CHCV02725, Sanchez v. Southern
California Edison Co., et al.

Trial Date: 06-07-27

MOTION TO COMPEL

RESPONSES TO FORM INTERROGATORIES

MOVING PARTY: Defendant/Cross-Complainant County of Los
Angeles

RESPONDING PARTY: No opposition was filed.

RELIEF REQUESTED

Order compelling plaintiff to serve
objection-free, verified responses to defendant County of Los Angeles' first set of form interrogatories
and imposing \$1,000 in monetary sanctions against plaintiff and her counsel of
record.

RULING: Motion is granted. The court awards defendant County \$600 in
monetary sanctions.

SUMMARY OF ACTION

Plaintiff Esperanza Sanchez (Plaintiff) filed this personal injury action on September 11, 2023, asserting a single negligence cause of action against defendants Southern California Edison and the County of Los Angeles. Plaintiff alleges she was injured on a sidewalk near Magic Mountain when her foot landed on a Southern California Edison electrical box. The County of Los Angeles (the County) filed a cross-complaint against Southern California Edison on September 20, 2024 and an answer to the Complaint on September 23, 2024.

On April 22, 2024, attorney Robert Klein substituted in as Plaintiff's counsel.

The County served Plaintiff by mail with its first set of form interrogatories on November 14, 2024. (Declaration of Michael Gee, Exh. A at pp. 9-10.) Responses were due December 19, 2024. On January 2, 2025, the County's counsel emailed plaintiff's counsel a letter requesting to meet and confer concerning Plaintiff's discovery responses and requested responses no later than January 12, 2026. (Id., Exh. B.) On January 13, 2026, the County's counsel sent a follow-up email stating a willingness to grant an extension to January 27, 2025, for objection-free responses because of the January 2025 fires. Counsel requested a response confirming receipt of the email and accepting the conditions of the second extension. On April 9 and 10, 2025, the County's counsel and plaintiff's counsel confirmed an agreement for Plaintiff to serve objection-free responses no later than April 17, 2025. (Id., Exh. C.) Responses were not served by the April 17, 2025, deadline. At plaintiff's counsel's request on April 17, 2025, the deadline was extended for a fourth time to April 24, 2026. (Id., Exh. D at p. 1.) Throughout the emails, plaintiff's counsel claimed he did not receive several emails that were sent by the County's counsel despite being copied on the emails. At some point before June 16, 2026, form interrogatory responses were served, but no verifications were served with the responses. (Id., Exh. G at p. 1.) The County's counsel requested verifications by June 20, 2026, or a motion to compel would be filed. (Id.) No verifications have been served.

On July 13, 2026, the County filed the instant motion to compel Plaintiff's verified, objection-free responses to the County's first set of form interrogatories. No opposition was filed.

ANALYSIS

A. Compelling Responses to Form Interrogatories

A propounding party may move to compel responses to form interrogatories where the responding party fails to provide any responses. (Code Civ. Proc., § 2030.290, subd. (b).) The propounding party must show the interrogatories were properly served, that the time to respond expired, and no response has been served. (Leach v. Superior Court (1980) 111 Cal.App.3d 902, 905-906.) Unless excused by a protective order, the responding party must serve responses (an answer, objection, or election to allow inspecting or copy records) within 30 days after the interrogatories are served or according to an agreed upon deadline extension. (Code Civ. Proc., §§ 2030.210, subd. (a), 2030.270.) Failing to respond within these time limits waives objections. (Code Civ. Proc., § 2030.290, subd. (a).)

After reviewing the moving papers and counsel's email conversations, the court finds the County properly served its first set of form interrogatories on Plaintiff and granted her several extensions over the course of a year. But Plaintiff only served unverified responses and failed to serve verifications. Plaintiff does not oppose the instant motion or provide a substantial justification for failing to serve the verifications.

Therefore, the court grants defendant County of Los Angeles' motion.

Plaintiff Esperanza Sanchez is ordered to serve verifications for her responses to the County's first set of form interrogatories within 10 days of the issuing of this order.

B. Sanctions

The County asks the court to impose \$1,000 in monetary

sanctions against Plaintiff and her counsel or record. (Gee Decl. ¶ 11.)

The court must impose sanctions against any party who “unsuccessfully makes or opposes a motion to compel responses to interrogatories unless, it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.290, subd. (c).)

The County is entitled to sanctions for the reasons stated above in Section A.

The County’s attorney charges \$400 per hour. (Gee Decl. ¶ 11.) The request includes 0.5 hours preparing the motion, 1.0 hour replying to the opposition, and 1.0 hour preparing for and appearing at the motion hearing.

The requested hourly rate is reasonable, but the court reduces the time requested by 1.0 hour because no opposition was filed.

Therefore, the court awards the County sanctions in the reduced amount of \$600.

CONCLUSION and ORDER

Motion is granted.

The court orders Plaintiff to serve verifications for her objection-free responses to the County of Los Angeles’ first set of form interrogatories within 10 days of the issuing of this order.

The court awards defendant County of Los Angeles \$600 in monetary sanctions. Plaintiff and her counsel of record are ordered to pay the County within 30 days of the issuing of this order.

Defendant County of Los Angeles to give notice.